

25CHCV03868 25CHCV03868

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-07-02

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF46%2C07%2F02%2F2026

Source SHA-256: f42ac4c6ef72862e1fcfa2ee6fdc842920d173c108b822116e4f809abfb7aab5

Case Number: 25CHCV03868 Hearing Date: July 2, 2026 Dept: F46

Dept. F-46

Hearing Date: July 2, 2026

Case Number: 25CHCV03868

DEFENDANT LINE 204, LLC'S DEMURRER TO PLAINTIFF'S FIRST
AMENDED COMPLAINT

Motion filed on April 1, 2026.

MOVING PARTY: Defendant Line 204, LLC

RESPONDING PARTY: Plaintiff Michael S. Lichstein, Co-Trustee
of the Michael and Debra Lichstein Family Trust dated June 4, 2025

NOTICE: OK.

RELIEF REQUESTED: Defendant Line 204, LLC demurs to the
first cause of action for breach of contract under Code of Civil Procedure
section 430.10, subdivisions (e) and (f).

RULING: Sustained with 20 days leave to amend.

BACKGROUND

On October 31, 2025, Michael S. Lichstein filed the original unlawful
detainer complaint against Line 204, LLC. On January 9, 2026, the Court set

aside and vacated the December 18, 2025 judgment, found possession was no longer at issue pursuant to the parties' oral stipulation, and ordered Plaintiff to file an amended complaint within 30 days. On January 30, 2026, Plaintiff filed the operative First Amended Complaint against Defendants Line 204, LLC, Alton Butler, and Sira Butler, asserting causes of action for breach of contract and breach of commercial guaranty. Line 204 filed this demurrer on April 1, 2026, supported by the declaration of Jeffrey S. Goodfried. Plaintiff filed an opposition on June 16, 2026. Line 204 filed a reply on June 25, 2026.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

A demurrer should be overruled if the complaint states facts sufficient to constitute a cause of action "under any possible legal theory." (Aubry, supra, 2 Cal.4th at p. 967.) Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."].)

DISCUSSION

Real Party In Interest

Code of Civil Procedure section 367 requires every action to

be prosecuted in the name of the real party in interest. The real party in interest is “the person possessing the right sued upon by reason of the substantive law[.]” (Powers v. Ashton (1975) 45 Cal.App.3d 783, 787.) “Where the complaint states a cause of action in someone, but not in the plaintiff, a general demurrer for failure to state a cause of action will be sustained.” (Parker v. Bowron (1953) 40 Cal.2d 344, 351.) A trust itself is not a separate legal entity and cannot sue in its own name. (Portico Management Group, LLC v. Harrison (2011) 202 Cal.App.4th 464, 473.) Where a cause of action is prosecuted on behalf of an express trust, “the trustee is the real party in interest because he is the one in whom title to the cause is vested.” (Powers, supra, 45 Cal.App.3d at p. 787.)

Code of Civil Procedure section 369, subdivision (a)(2) permits a trustee of an express trust to sue without joining the persons for whose benefit the action is prosecuted. Probate Code section 16249 gives a trustee the power to prosecute actions for the protection of trust property. Probate Code section 15620 provides that, unless the trust instrument provides otherwise, a power vested in two or more trustees may be exercised only by their unanimous action.

Here, the FAC alleges the existence of a lease, Plaintiff’s performance, Line 204’s breach, and resulting damages. (FAC, ¶¶ BC-1 to BC-6.) The FAC names Plaintiff as “Michael S. Lichstein, Co-Trustee of the Michael and Debra Lichstein Family Trust dated June 4, 2025,” but the lease attached to the FAC identifies “Michael S. Lichstein, a Married Man as His Sole and Separate Property” as lessor. (FAC, p. 1, Ex. A.) The FAC alleges that the lease was made between Michael S. Lichstein and Line 204. (FAC, ¶ BC-1.) It does not allege that the premises were transferred to the Trust, that the lease rights became trust property, that the lease claims became trust claims, or that Plaintiff otherwise acquired the right to enforce the lease in his capacity as co-trustee.

The FAC also does not allege facts showing Plaintiff’s authority to prosecute the action as the sole appearing co-trustee. Plaintiff identifies himself as co-trustee, but the FAC does not allege that the trust instrument authorizes him to act unilaterally or that the co-trustees acted unanimously in bringing this action. The trust instrument is not attached to the FAC. If the Trust, pursuant to its terms, gives Plaintiff authority to act unilaterally, or if the co-trustees unanimously authorized the action, those facts may be pleaded. As pleaded, the FAC does not allege the facts necessary

to show that Plaintiff may exercise the trustee power to prosecute this action for the Trust.

Because the alleged transfer is not pleaded in the FAC, it does not establish that the named trustee plaintiff is the real party in interest. The FAC therefore fails to state facts sufficient to constitute a breach of contract cause of action by Plaintiff in the capacity in which he sues.

The demurrer is sustained under Code of Civil Procedure section 430.10, subdivision (e).

Uncertainty

When considering demurrers, courts read the allegations liberally, reasonably, and in context. (MKB Management, Inc. v. Melikian (2010) 184 Cal.App.4th 796, 802.) “[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695 (internal quotation omitted).)

Here, the FAC alleges unpaid base rent, late fees, CAM charges, insurance, real estate taxes, other rent-related charges, physical damage to the premises, and damages of at least \$880,000. (FAC, ¶¶ 10, BC-2, BC-4.) The damages allegations are thin, but they identify the categories of damages claimed and state an amount demanded. Line 204 can respond to the pleading and test the calculation through discovery.

The demurrer is overruled under Code of Civil Procedure section 430.10, subdivision (f).

Leave to Amend

The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Here, Plaintiff’s opposition identifies a potentially curative amendment by asserting that the premises were transferred into the Trust. Plaintiff may also be able to allege facts showing authority to

prosecute the action as co-trustee. Therefore, the Court grants leave to amend.

CONCLUSION

Defendant Line 204, LLC's demurrer to the first cause of action for breach of contract is sustained under Code of Civil Procedure section 430.10, subdivision (e), with 20 days leave to amend. The demurrer is overruled under Code of Civil Procedure section 430.10, subdivision (f).